

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X
MALIQUE MENDOZA,

SUMMONS

Plaintiff,

Index No.

-against-

Plaintiff designates KINGS COUNTY
as the place of trial

CITY OF NEW YORK, JESSICA SCHRELL AND
JOHN OR JANE DOE 1-10,

The basis of the venue is where the
injury occurred

Defendants.

-----X

TO THE ABOVE-NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: Bayside, New York
December 7, 2020

SIM & DEPAOLA, LLP



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TO: CORPORATION COUNSEL OF THE CITY OF NEW YORK
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New York, New York 10007

P.O. JESSICA SHRELL, Tax Reg. No. 953384
211 Union Avenue
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SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X
MALIQUE MENDOZA,

Plaintiff,

VERIFIED COMPLAINT

Index No.

-against-

CITY OF NEW YORK, JESSICA SCHRELL AND
JOHN OR JANE DOE 1-10,

Defendants.

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The Plaintiff, **MALIQUE MENDOZA**, by his attorneys, **SIM & DEPAOLA, LLP**, for his complaint against the above-captioned Defendants, **CITY OF NEW YORK, JESSICA SCHRELL** and **JOHN** or **JANE DOE 1-10**, alleges and states as follows:

1. This is a civil rights action, in which plaintiff seeks relief, vis-à-vis 42 U.S.C. §§ 1983, 1985, 1986 and 1988, the laws of the State of New York, in addition to the self-executing clauses or implied private causes of action within the New York State Constitution, for the violations of her civil rights, as guaranteed and protected by the Fourth, Fifth, Sixth and Fourteenth Amendments to the Constitution of the United States, as well as the Laws and Constitution of the State of New York.

2. Plaintiff's claims arise from a November 02, 2019 incident, in which Defendants, acting under color of state law, unlawfully arrested and detained Plaintiff. As a direct and proximate result, Plaintiff was unlawfully detained within the New York City Police Department, within the jurisdictional confines of Kings County, New York. Plaintiff was deprived of his liberty for approximately two (2) days and suffered serious physical and emotional injuries. He was maliciously prosecuted, until the dismissal of all charges, on November 03, 2019.

3. Plaintiff seeks monetary damages (compensatory and punitive) against Defendants, as well as an award of costs and attorneys' fees, and such other and further relief as the Court may deem just and proper.

PARTIES

4. Plaintiff, MALIQUE MENDOZA (hereinafter as "Plaintiff" or "Mr. Mendoza") resides in the County of Kings, State of New York.

5. Defendant, City of New York ("City"), is a municipal corporation organized under the laws of the State of New York.

6. At all times relevant hereto, Defendant City, acting through the New York City Police Department ("NYPD"), was responsible for the policy, practice, supervision, implementation, and conduct of all NYPD matters and was responsible for the appointment, training, supervision, discipline and retention and conduct of all NYPD personnel, including police officers, detectives and supervisory officers as well as the individually named Defendants herein.

7. At all times here relevant, Defendant City was responsible for enforcing the rules of the NYPD, and for ensuring that the NYPD personnel obey the laws of the United States and of the State of New York.

8. Defendant JESSICA SCHRELL ("SCHRELL") was, at all times here relevant, a police officer employed by the NYPD and as such was acting in the capacity of an agent, servant and employee of the City of New York. Defendant SCHRELL was, at the time relevant herein, a police detective under Shield No. 26482 and Tax Reg. No. 953384 in the NYPD, located at the 90th Precinct, 211 Union Avenue, Brooklyn, New York 11211. Defendant SCHRELL is being sued in her individual and official capacities.

9. At all times relevant Defendants, including SCHRELL and JOHN or JANE DOE 1-10, were police officers, detectives, supervisors, policy makers and/or officials employed by the NYPD. At this time, Plaintiff does not know the true names or tax registry numbers of Defendants JOHN or JANE DOE 1-10, as such knowledge is in the exclusive possession of the Defendants.

10. At all times relevant herein, Defendants, including SCHRELL and JOHN or JANE DOE 1-10, were acting as agents, servants and employees of the City of New York, and/or the NYPD. Defendants, including SCHRELL and JOHN or JANE DOE 1-10, are being sued in their individual and official capacities.

11. At all times herein mentioned, Defendants, including SCHRELL, and JOHN or JOHN DOE 1-10 were acting under color of state law, to wit, under color of the statutes, ordinances, regulations, policies, customs and usages of the City and State of New York.

FACTUAL CHARGES

12. On November 2, 2019, at approximately 5:30 p.m., Plaintiff was in the vicinity of Scholes Street and Union Avenue, County of Kings, City and State of New York.

13. Plaintiff was illegally stopped, questioned, searched and seized by Defendants, including SCHRELL and JOHN or JANE DOE 1-10, who had no reasonable suspicion or probable cause to do so.

14. Plaintiff had not committed any crimes or violations of the law, including those enumerated within the New York State Vehicle and Traffic Law.

15. Defendants, including SCHRELL and JOHN or JANE DOE 1-10, unlawfully stopped and searched Plaintiff's person and his vehicle without any legal justification or probable cause to do so, as plaintiff had not committed any violations of the law and there were no indicia of criminal activity present.

16. At all relevant times, Defendants, including SCHRELL, and JOHN or JANE DOE 1-10, intentionally provided said false or fabricated information that would be likely to influence a prosecutors employed by the District Attorney's Office to wrongfully prosecute the Plaintiff, namely that plaintiff's motor vehicle was unlawfully equipped with improper window coatings (a/ka/ excessive tints), that an odor or marijuana was emanating from plaintiff's motor vehicle and that defendants recovered a quantity of marijuana and illegal folding knife from the center console of plaintiff's vehicle.

17. Plaintiff's motor vehicle was not equipped with any unlawful window coating or excessive tints and plaintiff was not in actual, constructive, or statutory possession of any illegal knife or quantity of marijuana.

18. Plaintiff had multiple assaults and batteries, committed to his person by Defendants, including SCHRELL and JOHN or JANE DOE 1-10, including but not limited to, being placed in handcuffs too tightly, aggressively searched and manhandled.

19. Defendants, including SCHRELL and JOHN or JANE DOE 1-10, knowingly and intentionally made false statement and allegations against the Plaintiff, including that Plaintiff was in unlawful possession of marijuana and a folding knife, and that his rear side window was illegally tinted in excess of the amount permitted by the New York Vehicle & Traffic Law.

20. Defendants, including SCHRELL and JOHN or JANE DOE 1-10, were fully aware that Plaintiff's vehicle had legally tinted windows, that no odor of marijuana was emanating from his vehicle and that there was contraband in plaintiff's possession of vehicle, including marijuana and illegal knife, but Defendants, including SCHREL or JOHN and JANE DOE 1-10, knowingly and intentionally decided to fabricate said observations to justify an otherwise invalid stop, search, arrest and subsequent criminal prosecution.

21. Defendants, including SCHRELL and JOHN or JANE DOE 1-10, ensured Plaintiff's cooperation by fabricating false evidence against Plaintiff, namely that Defendant SCHRELL had smelled a strong odor of marijuana coming out Plaintiff's vehicle.

22. Defendants, including SCHRELL and JOHN or JANE DOE 1-10, physically removed Plaintiff and transported him to the 90th Precinct, all against his will and without legal authority, namely without probable cause or judicially authorized arrest warrant.

23. Upon arrival to the local NYPD Precinct, Plaintiff was subjected to unconsented physical contact and procedures, including being photographed, fingerprinted, retinal scanned, and strip-searched with an attendant cavity inspection, which were conducted by, or at the direction of, defendants, including SCHRELL and JOHN or JANE DOE 1-10.

24. Defendants, including SCHRELL and JOHN or JANE DOE 1-10, unlawfully subjected Plaintiff to an illegal custodial interrogation in the absence of requested counsel without informing Plaintiff of his rights, pursuant to *Miranda v. Arizona*, 384 U.S. 436 (1966).

25. Defendants, including SCHRELL and JOHN or JANE DOE 1-10, then subjected Plaintiff to illegal and coercive interrogation tactics by threatening him with a protracted criminal prosecution, if he did not comply with defendants' demands by agreeing to become a confidential informant or provide defendants with information relating to actual criminal activity and criminals.

26. When Plaintiff was unable to provide Defendants, including SCHRELL and JOHN or JANE DOE 1-10, with the information demanded, Defendants retaliated against plaintiff by forwarding said fabricated evidence to prosecutors so that plaintiff would be subjected to a criminal prosecution despite the dearth of probable cause to believe plaintiff guilty of any crime or that a prosecution would succeed.

27. Plaintiff was eventually vindicated when the criminal proceedings maliciously initiated against him by defendants, including SCHRELL and JOHN or JANE DOE 1-10, were terminated in plaintiff's favor via the dismissal of all charges.

28. Defendants, including SCHRELL and JOHN or JANE DOE 1-10, arrested and attempted cause a criminal prosecution to be initiated against plaintiff, because of their desires to use plaintiff's arrest and criminal prosecution as leverage obtain information from plaintiff or convert him into a confidential informant, to incur additional overtime compensation, benefits and career favor from the superior officers, to avoid adverse consequences associated with failing to meet NYPD departmental arrest quotas and also to conceal their egregious violations of proper police procedures and gross misconduct, including their fabrications of non-existent observations, evidence, and information.

29. At no point did the Defendants, including SCHRELL and JOHN or JANE DOE 1-10, ever observe Plaintiff committing any alleged crimes or offenses, including driving a motor vehicle with an illegally tinted rear window, unlawfully possessing marijuana or a knife with a blade in excess of four (4) inches.

30. At no point were the Defendants, including SCHRELL and JOHN or JANE DOE 1-10, ever told by any witnesses that Plaintiff committed any crime or violation of the law.

31. Defendants, including SCHRELL and JOHN or JANE DOE 1-10, did not possess a valid, judicially authorized arrest or search warrant for Plaintiff, his motor vehicle or his property.

32. Defendants, including SCHRELL, and JOHN or JANE DOE 1-10 did not possess probable cause or other justification for the arrest or seizure of Plaintiff's person or Plaintiff's vehicle.

33. Mr. Mendoza asserts that Defendants, including SCHRELL and JOHN or JANE DOE 1-10, illegally approached, stopped, searched, and then falsely arrested him, due solely to their

racially discriminatory prejudices against Latino or Hispanic males, their intent to use the instant arrest as leverage against Mr. Mendoza, so that he would provide defendants with information regarding other crimes or criminal suspects, their desires to fulfill an unconstitutional arrest quota and to benefit from increased overtime compensation.

34. Mr. Mendoza further asserts that Defendants, including SCHRELL and JOHN or JANE DOE 1-10, acted in such an unlawfully reprehensible manner, due to their unsubstantiated and unreasonable presumption that Mr. Mendoza would be aware of serious ongoing criminal activity or actively committing a crime himself, solely because of his status as a Hispanic or Latino male.

35. Defendants, including SCHRELL and JOHN or JANE DOE 1-10, arrested and maliciously prosecuted Plaintiff, because of their racially discriminatory beliefs, which compelled defendants to equate to Mr. Mendoza's race to criminal guilt or criminal knowledge.

36. Defendants, including SCHRELL and JOHN or JANE DOE 1-10, perpetrated multiple overt acts in furtherance of their obviously discriminatory inclinations, namely the stop, searches, assaults, batteries, seizure, arrest, and malicious prosecution against plaintiff, even after they were unable to discover any evidence to justify such conduct.

37. Defendants, including SCHRELL and JOHN or JANE DOE 1-10, unlawfully stopped, questioned, searched, seized, arrested, and maliciously prosecuted plaintiff, due solely to defendants' perception or consideration of Mr. Mendoza's race.

38. Defendants, including SCHRELL and JOHN or JANE DOE 1-10, possessed no valid reason to approach, stop, question, search or arrest plaintiff, which gives rise to the strong inference that such conduct resulted from defendants' unjust motivations or proclivities.

39. Defendants, including SCHRELL and JOHN or JANE DOE 1-10, subjected Mr. Mendoza to disparate treatment compared to other individuals similarly situated, because defendants did not

stop and accuse any white motorists who were committing actual violations of the law, including driving a vehicle with excessively tinted windows.

40. Defendants, including SCHRELL and JOHN or JANE DOE 1-10, engaged in a conspiracy to falsely arrest and maliciously prosecute Mr. Mendoza by personally conferring with each other, regarding the fabrication of the aforementioned non-existent evidence the suppression of exculpatory evidence, as well the manner and means by which said fabrications would be forwarded to the District Attorney's Office.

41. At all times relevant hereto, Defendants, including SCHRELL and JOHN or JANE DOE 1-10, were involved in the decision to arrest Plaintiff without probable cause or failed to intervene when they observed others arresting Plaintiff without probable cause.

42. At all times relevant hereto, Defendants, including SCHRELL and JOHN or JANE DOE 1-10, engaged in fraud, perjury, the suppression of evidence and other actions conducted in bad faith, or failed to intervene when Defendant SCHRELL, observed others doing so, all in furtherance of Plaintiff's wrongful arrest and subsequent malicious attempt at a criminal prosecution.

43. Plaintiff asserts that the Defendants, including SCHRELL and JOHN or JANE DOE 1-10, who violated Plaintiff's civil rights, are part of a larger pattern and practice of similar misconduct, which is so widespread, pervasive and consistent throughout the NYPD, and the City of New York that the commission such constitutionally violative behavior has become tantamount to an official policy or custom within the NYPD, and City of New York or, at the very least, conclusive evidence that the City, NYPD have either tacitly approved of such egregious wrongdoings or that they have become deliberately indifferent to the civil rights of those who may come into contact their police officers.

44. The individually named Defendants herein, as well as other officers serving in the employ of the NYPD, and City of New York, have blatantly, shamelessly, consistently and repeatedly engaged in conduct violative of the civil rights guaranteed and protected by Constitution of the United States, in addition to the laws and Constitution of the State of New York, all without incurring any ramifications for such misconduct and, ostensibly, with the full and complete blessing of the NYPD, the City of New York and their respective policymakers and supervisors.

45. In a report by *NBC Channel 4 News, New York*, entitled “Ex NYPD Sergeant Accused of Assaulting Man at Homeless Shelter, Stomping on His Head More Than 10 Times,” by Jonathan Dienst and Joe Valiquette, horrific allegations against a former NYPD police sergeant were detailed, including his use of extreme and excessive force, as well as his falsifying evidence that was forwarded to prosecutors. The former NYPD sergeant is no longer by NYPD and his criminal case is presently being prosecuted by the United States Attorney’s Office for the Southern District of New York. Another article from *citylimits.org*, entitled “City Views: Is NYPD Oversight Really making Homeless Shelters Safer,” by Daniel Castillo, discusses how the NYPD police officers have begun to jointly enforce the law within many homeless shelters, but how such added policing has only worsened the already crime riddled areas. It also details how ongoing problems have only deteriorated since the newly enacted joint jurisdiction.

46. *The New York Times*, as well as numerous other reputable journalistic enterprises, have reported on the widespread corruption within the NYPD, and City of New York, particularly the incredibly disconcerting proclivity of many NYPD officers to engage in the fabrication or misrepresentation or subject matters that are materially relevant to criminal prosecutions, including the complete fabrication of arrest evidence and witnesses. Also detailed, is the NYPD’s obstinate refusal to effectuate corrective or preventive measures to combat the inevitable recurrence of such

misdeeds, and perhaps most troubling, the NYPD's alarming tendency to, instead, reward and promote these officers, including those who were inculcated via some incontrovertible form of evidence.

47. On March 18, 2018, *The New York Times* published an explosive article, entitled "Promotions, Not Punishments for Officers Accused of Lying," written by Joseph Goldstein. Mr. Goldstein shines a light on the multitude of flaws within the CCRB and the NYPD, highlighting the fact that the substantiation of a claim against an officer will invariably rely on the presence of incontrovertible proof against the officer. Due to the rarity availability of this type of evidence, an alarmingly small percentage of officer misconduct claims are substantiated. The CCRB is further handicapped by a terribly designed system that requires evidence of a virtually indisputable nature to substantiate any claim against an officer. The article also details the NYPD's persistent reluctance to investigate or discipline officers who lie and even posits that this reluctance is a significant cause of the lying pandemic within the NYPD. The article references various officers and detectives who were the subject of credible accusations relating to the officers' intentionally false statements, with some allegations coming from federal and state judges.

48. On September 12, 2019, *The New York Times* published another article by Joseph Goldstein, entitled "Officers Said They Smelled Pot. The Judge Called Them Liars." Unsurprisingly, this article dealt with the unusually high frequency of officers using the odor of marijuana to excuse a search that conspicuously does not result in the recovery of any marijuana. It should not require an article in *The New York Times* to call attention to such patently disingenuous tactics, but has become necessary for a variety of reasons, including the NYPD's failure to correct such behavior, the willingness of prosecutors and judges to credit the lying officers and the increasing rate of occurrence.

49. On April 24, 2019, *The New York Times* published an article, entitled “Detective’s Lies Sent Three People to Prison, Prosecutors Charge,” by Sean Piccolo, detailing the lies of NYPD Second Grade Detective Joseph Franco and how those lies resulted in the imprisonment of at least three innocent people. The article described how Det. Franco lied about observing drug transactions on at least three separate occasions, lies that were only uncovered through contradictory video evidence. Det. Franco’s lies resulted in the innocent individuals each being sentenced to prison terms in excess of one-year.

50. Other articles include: (i) “Testifying’ by Police: A Stubborn Problem.,” by Joseph Goldstein, *The New York Times*, March 18, 2018; (ii) “New York Detective Charged with Faking Lineup Results,” by Joseph Goldstein, *The New York Times*, February 17, 2018; (iii) “He Excelled as a Detective, Until Prosecutors Stopped Believing Him,” by Joseph Goldstein, *The New York Times*, October 17, 2017; (iv) “Review Board Notes Rise in New York Police Officers’ False Statement,” by J. David Goodman, *The New York Times*, May 14, 2015; (v) “In Brooklyn Gun Cases, Suspicion Turns to the Police,” by Stephanie Clifford, *The New York Times*, December 11, 2014; (vi) “Detective is Found Guilty of Planting Drugs,” by Tim Stelloh, *The New York Times*, November 1, 2011; and (vii) “The Drugs? They Came from the Police,” by Jim Dwyer, *The New York Times*, October 13, 2011.

51. The NYPD has a longstanding and ignominious record of failing to discipline its officers, or even entertaining allegations of wrongdoing against them. On June 26, 2019, *The New York Times* published an article, entitled “2,495 Reports of Police Bias. Not One Was Deemed Valid by the N.Y.P.D.” This article reported that within the last five (5) years, almost 2,500 separate individuals have filed formal complaints with the NYPD alleging that an officer acted with bias toward them, with not a single one being substantiated by the NYPD. Such a finding is plainly

incredible and obviously the result of deliberately poor or nonexistent investigatory protocols. The report further impugned the NYPD's commitment to combat the prejudices and the biases exhibited by many of its officers.

52. Upon information and belief, the NYPD, the City of New York, and their respective policymakers, officials or supervisors have imposed, tacitly approved or acquiesced to policies, customs, or patterns and practices within the NYPD that resulted in Plaintiff's arrest without probable cause.

53. Upon information and belief, the NYPD, the City of New York, and their respective policymakers or supervisors have failed to provide adequate training regarding the identification of probable cause, reasonable suspicion or the appropriate amount of force to be used.

54. Defendants' actions, pursuant to Plaintiff's underlying arrest, which occurred without even the semblance of probable cause, were so blatantly violative of his civil rights that the tacit approval of identical or similar acts by the policymakers or supervisors of the NYPD, and the City of New York, as well as their deliberate indifference towards the rights of any individuals who may come into contact with Defendants, should be inferred, because such flagrant deprivations of constitutionally protected rights could not and would not occur without the tacit approval or deliberate indifference regarding the commission of such violations by the policymakers or supervisors of the NYPD, and City of New York.

55. Upon information and belief, further details and facts, relating to the unlawful policies, customs or patterns and practices of the NYPD, City of New York and their respective policymakers, supervisors, police officers or employees, will become known after the completion of discovery, as such information is presently within the exclusive possession of Defendants, the NYPD, and City of New York.

56. Upon information and belief, the personnel files, records and disciplinary histories of the officer Defendants will reveal a history of Constitutional violations indicative of Defendant City's knowledge that the individual officer Defendants were unfit for employment as NYPD officers, or for employment in general, and that the probability of the individually named Defendants committing similar violations in the future was extremely high.

57. Upon information and belief, said personnel files, records and disciplinary histories will conclusively show that the City, and the NYPD were fully aware of Defendants' past constitutional violations, the unacceptably high probability for the recurrence of similar transgressions, the unreasonably dangerous situations that were likely to result from their hiring or retention, as well as their unsuitability for employment as law enforcement officers, or for employment in general, and that the NYPD, and City of New York failed to engage in any preventive or corrective action intended to diminish the likelihood of recurrence for such violations, which is tantamount to the City's tacit approval of such misconduct or the City's deliberate indifference towards the civil rights of those who may interact with its employees, including SCHRELL and JOHN or JANE DOE 1-10.

58. As a direct and proximate result of the acts of Defendants, including the City, whose including SCHRELL and JOHN or JANE DOE 1-10, Plaintiff suffered the following injuries and damages: violations of his rights pursuant to the Fourth and Fourteenth Amendment of the United States Constitution, violations of New York State law, physical injury, physical pain and suffering, emotional trauma and suffering, including fear, embarrassment, humiliation, emotional distress, frustration, extreme inconvenience, anxiety, loss of liberty and harm to reputation.

FIRST CAUSE OF ACTIONProtected Speech or Activity Retaliation Claim Under
New York State Law

1. The above paragraphs are here incorporated by reference as though fully set forth.
2. Plaintiff engaged in speech and activities that were protected by Article I, Section 8, of the New York State Constitution.
3. Defendants committed impermissible or unlawful actions against plaintiff that were motivated or substantially caused by plaintiff's constitutionally protected speech or activities.
4. Defendants' retaliatory actions against plaintiff resulted in the deprivation of his liberty and the initiation of criminal charges against him.
5. Defendants' retaliatory actions adversely affected plaintiff's protected speech or activities by physically or procedurally preventing him from further pursuing said protected speech or activities or by chilling his desire to further participate or engage in such protected speech or activities.
6. Accordingly, plaintiff's right to engage in protected speech and activities, guaranteed and protected by Art. I, § 8, of the New York State Constitution, was violated by defendants.
7. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoings, under the doctrine of *respondeat superior*.
8. As a direct and proximate result of this unlawful conduct, plaintiff sustained the damages hereinbefore alleged.

SECOND CAUSE OF ACTIONFirst Amendment Retaliation Claim Under
42 U.S.C. § 1983 Against Individual Defendants

9. The above paragraphs are here incorporated by reference as though fully set forth.

10. Plaintiff engaged in speech and activities that were protected by the First Amendment to the United States Constitution.

11. Defendants committed impermissible or unlawful actions against plaintiff that were motivated or substantially caused by plaintiff's constitutionally protected speech or activities.

12. Defendants' retaliatory actions against plaintiff resulted in the deprivation of his liberty and the initiation of criminal charges against him.

13. Defendants' retaliatory actions adversely affected plaintiff's protected speech or activities by physically or procedurally preventing him from further pursuing said protected speech or activities, or by chilling his desire to further participate or engage in such protected speech or activities.

14. Accordingly, plaintiff's right to engage in protected speech and activities, as guaranteed and protected by the First Amendment to the United States Constitution, was violated by defendants.

15. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

THIRD CAUSE OF ACTION
Unlawful Search & Seizure Under
New York State Law

16. The above paragraphs are here incorporated by reference as though fully set forth.

17. Defendants subjected plaintiff and his property to unreasonable searches and seizures without a valid warrant and without reasonable suspicion or probable cause do so.

18. Plaintiff was conscious and fully aware of the unreasonable searches and seizures to his person and property.

19. Plaintiff did not consent to the unreasonable searches and seizures to his person or property.

20. The unreasonable searches and seizures to plaintiff's person and property were not otherwise privileged.

21. Accordingly, defendants violated plaintiff's right to be free from unreasonable searches and seizures, pursuant to Art. I, § 12, of the New York State Constitution and Art. II, § 8, of the New York Civil Rights Law.

22. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoings under the doctrine of *respondeat superior*.

23. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

FOURTH CAUSE OF ACTION

Unlawful Search & Seizure Under
42 U.S.C. § 1983 Against Individual Defendants

24. The above paragraphs are here incorporated by reference as though fully set forth.

25. Defendants subjected plaintiff and his property to unreasonable searches and seizures without a valid warrant and without reasonable suspicion or probable cause do so.

26. Plaintiff was conscious and fully aware of the unreasonable searches and seizures to his person and property.

27. Plaintiff did not consent to the unreasonable searches and seizures to his person or property.

28. The unreasonable searches and seizures to plaintiff's person and property were not otherwise privileged.

29. Accordingly, defendants violated plaintiff's right to be free from unreasonable searches and seizures, pursuant to the Fourth Amendment to the United States Constitution.

30. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

FIFTH CAUSE OF ACTIONFalse Arrest & False Imprisonment Under
New York State Law

31. The above paragraphs are here incorporated by reference as though fully set forth.
32. Defendants subjected Plaintiff to false arrest, false imprisonment, and deprivation of liberty without probable cause.
33. Plaintiff was conscious of his confinement.
34. Plaintiff did not consent to his confinement.
35. Plaintiff's arrest and false imprisonment was not otherwise privileged.
36. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.
37. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

SIXTH CAUSE OF ACTIONFalse Arrest & False Imprisonment Under
42 U.S.C. § 1983 Against Individual Defendants

38. The above paragraphs are here incorporated by reference as though fully set forth.
39. The Defendants violated the Fourth and Fourteenth Amendments to the United States Constitution by wrongfully and illegally arresting, detaining and imprisoning Plaintiff.
40. The wrongful, unjustifiable, and unlawful apprehension, arrest, detention, and imprisonment of Plaintiff was carried out without a valid warrant, without Plaintiff's consent, and without probable cause or reasonable suspicion.
41. At all relevant times, Defendants acted forcibly in apprehending, arresting, and imprisoning Plaintiff.

42. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

SEVENTH CAUSE OF ACTION

Assault & Battery Under
New York State Law

43. The above paragraphs are here incorporated by reference as though fully set forth.

44. Defendants made plaintiff fear for his physical well-being and safety and placed him in apprehension of immediate harmful or offensive touching.

45. Defendants engaged in and subjected plaintiff to immediate harmful or offensive touching and battered him without his consent.

46. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

47. As a direct and proximate result of this breach, Plaintiff sustained the damages hereinbefore alleged.

EIGHTH CAUSE OF ACTION

Excessive Force Under
42 U.S.C. § 1983 Against Individual Defendants

48. The above paragraphs are here incorporated by reference as though fully set forth.

49. The Defendants violated Plaintiff's rights, under the Fourth and Fourteenth Amendments, because they used unreasonable force without Plaintiff's consent.

50. Defendants engaged in and subjected Plaintiff to immediate harmful or offensive touching and battered him without his consent.

51. As a direct and proximate result of this breach, Plaintiff sustained the damages hereinbefore alleged.

NINTH CAUSE OF ACTION**Malicious Prosecution Under
New York State Law**

52. The above paragraphs are here incorporated by reference as though fully set forth.
53. Defendants initiated the prosecution against Plaintiff.
54. Defendants lacked probable cause to believe Plaintiff was guilty or that a prosecution would succeed.
55. Defendants acted with malice, which may be inferred in the absence of probable cause.
56. The prosecution was terminated in Plaintiff's favor, when all adverse were dismissed and sealed, due to the lack of probable cause to believe that plaintiff had committed a crime or that the prosecution would succeed.
57. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.
58. As a direct and proximate result of this breach, Plaintiff sustained the damages hereinbefore alleged.

TENTH CAUSE OF ACTION**Malicious Prosecution Under
42 U.S.C. § 1983 Against Individual Defendants**

59. The above paragraphs are here incorporated by reference as though fully set forth.
60. Defendants initiated the prosecution against Plaintiff.
61. Defendants lacked probable cause to believe Plaintiff was guilty or that a prosecution would succeed.
62. Defendants acted with malice, which may be inferred in the absence of probable cause.
63. The prosecution was terminated in Plaintiff's favor, when all adverse charges were dismissed and sealed.

64. Accordingly, Defendants violated Plaintiff's Fourth and Fourteenth Amendment rights.

65. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

ELEVENTH CAUSE OF ACTION

Malicious Abuse of Process Under
New York State Law

66. The above paragraphs are here incorporated by reference as though fully set forth.

67. Defendants arrested, detained and caused a criminal prosecution to be initiated against plaintiff to compel the compliance or forbearance of some act.

68. Defendants had no excuse or justification to forcibly detain or initiate a prosecution against Plaintiff, especially with the absence of any cognizable probable cause.

69. Defendants intended to inflict substantial harm upon plaintiff.

70. Defendants acted to achieve a collateral purpose, beyond or in addition to plaintiff's criminal prosecution.

71. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

72. As a direct and proximate result of this unlawful conduct, plaintiff sustained the damages hereinbefore alleged.

TWELFTH CAUSE OF ACTION

Malicious Abuse of Process Under
42 U.S.C. § 1983 Against Individual Defendants

73. The above paragraphs are here incorporated by reference as though fully set forth.

74. Defendants arrested, detained and caused a criminal prosecution to be initiated against plaintiff to compel the compliance or forbearance of some act.

75. Defendants had no excuse or justification to forcibly detain and initiate a prosecution against plaintiff, especially with the absence of any cognizable probable cause.

76. Defendants intended to inflict substantial harm upon plaintiff.

77. Defendants acted to achieve a collateral purpose, beyond or in addition to plaintiff's criminal prosecution.

78. Defendants' actions therefore resulted in deprivations to plaintiff's rights, pursuant to the Fourth and Fourteenth Amendments.

79. As a direct and proximate result of this unlawful conduct, plaintiff sustained the damages hereinbefore alleged.

THIRTEENTH CAUSE OF ACTION

Denial of Right to Due Process Under
New York State Law

80. The above paragraphs are here incorporated by reference as though fully set forth herein.

81. Defendants fabricated false evidence to be used against plaintiff that was likely to influence a jury's decision.

82. Defendants forwarded said false information to the District Attorney's Office.

83. Defendants' actions resulted in post-arraignment deprivation to plaintiff's liberty and freedom of movement.

84. Accordingly, defendants violated plaintiff's right to a fair trial, pursuant to Art. I, §§ 1, 2 & 6, of the constitution of the State of New York State, in addition to Art. II, § 12, of the New York State Civil Rights Law.

85. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

86. As a direct and proximate result of this unlawful conduct, plaintiff sustained the damages hereinbefore alleged.

FOURTEENTH CAUSE OF ACTION

Denial of Rights to Fair Trial & Due Process Under
42 U.S.C. § 1983 Against Individual Defendants

87. The above paragraphs are here incorporated by reference as though fully set forth.

88. Defendants fabricated false evidence to be used against plaintiff that was likely to influence a jury's decision.

89. Defendants forwarded said false information to prosecutors.

90. Defendants' actions resulted in post-arraignment deprivations to plaintiff's liberty and freedom of movement.

91. Accordingly, defendants violated Plaintiff's rights, pursuant to the Fourteenth Amendment to United States Constitution

92. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

FIFTEENTH CAUSE OF ACTION

Biased Based Profiling under
New York City Law

93. The above paragraphs are here incorporated by reference as though fully set forth herein.

94. Defendants impermissibly relied upon Plaintiff's actual or perceived race, color, national origin, ancestry, citizenship status, gender, religion, religious practice, age, disability or sexual orientation, as the determinative factor in initiating law enforcement action against Plaintiff, rather than Plaintiff's behavior or other information or circumstances that would link Plaintiff to suspected unlawful activity.

95. Accordingly, defendants violated plaintiff's rights, pursuant to New York City Admin. Code

§ 14-151.

96. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

97. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

SIXTEENTH CAUSE OF ACTION

Deprivation of Rights & Denial of Equal Protection of the Laws under
New York State law

98. The above paragraphs are here incorporated by reference as though fully set forth herein.

99. Plaintiff, as Hispanic or Latino male, is a member of a racial minority and protected class.

100. Defendants discriminated against Plaintiff on the basis of his race, color, national origin, ancestry, gender, religion, religious practice, age, disability or sexual orientation

101. Defendants also engaged in the selective treatment of Plaintiff, in comparison to others similarly situated.

102. Defendants' discriminatory treatment of Plaintiff was based on impermissible considerations, such as race, color, ethnicity, an intent to inhibit or punish Plaintiff for the exertion of his Constitutional rights, or a malicious or bad faith intent to injure Plaintiff.

103. Defendants applied facially neutral laws against Plaintiff in a discriminatory manner.

104. Defendants, motivated by discriminatory animus, applied facially neutral statutes with adverse effects against Plaintiff.

105. Defendants did not possess a rational basis, excuse or justification for applying any laws or statutes against Plaintiff.

106. Accordingly, defendants violated plaintiff's rights, pursuant to Article I, Section 11, of the New York State Constitution, Art. VII, § 79-N, of the New York Civil Rights Law and § 296, ¶ 13,

of the New York Human Rights Law.

107. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

108. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

SEVENTEENTH CAUSE OF ACTION

Deprivation of Rights & Denial of Equal Protection of the Laws under
42 U.S.C. §§ 1981 & 1983 Against Individual Defendants

109. The above paragraphs are here incorporated by reference as though fully set forth herein.

110. Plaintiff, as a Hispanic or Latino male, is a member of a racial minority and protected class.

111. Defendants discriminated against Plaintiff on the basis of his race, color or ethnicity

112. Defendants engaged in the selective treatment of Plaintiff in comparison to others similarly situated.

113. Defendants' selective treatment of Plaintiff was based on impermissible considerations, such as race, color, ethnicity, an intent to inhibit or punish Plaintiff for the exertion of his Constitutional rights, or malicious or bad faith intent to injure Plaintiff.

114. Defendants applied facially neutral laws against Plaintiff in a discriminatory manner.

115. Defendants, motivated by a discriminatory animus, applied facially neutral penal statutes with adverse effects against Plaintiff.

116. Defendants did not possess a rational basis, excuse or justification for applying any laws or statutes against Plaintiff.

117. Accordingly, defendants violated plaintiff's rights, under the Fourteenth Amendment.

118. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

EIGHTEENTH CAUSE OF ACTION

Conspiracy to Interfere with Civil Rights & Failure to Prevent the Conspiracy under
42 U.S.C. §§ 1983, 1985 & 1986 Against Individual Defendants

119. The above paragraphs are here incorporated by reference as though fully set forth herein.

120. Defendants engaged in a conspiracy against Plaintiff to deprive Plaintiff of his rights to engage in protected speech or activities, to be free from unreasonable searches and seizures, to be afforded a fair trial, to not be deprived of his liberty or property without due process of law, or of the privileges and immunities under the laws and constitutions of the United States and of the State of New York.

121. Defendants committed overt acts in furtherance of their conspiracy against Plaintiff.

122. As a result, Plaintiff sustained injuries to his person, was deprived of his liberty or was deprived of rights or privileges of citizens of the United States.

123. Defendants' conspiracy was motivated by a desire to deprive Plaintiff of his civil rights or because of some racial, otherwise class-based, invidious or discriminatory animus.

124. The Defendants that did not engage or participate in the conspiracy to interfere with Plaintiff's civil rights, had knowledge that acts in furtherance of the conspiracy were about to be committed or in process of being committed, possessed the power to prevent or aid in the prevention of the conspiratorial objective, and neglected to do so.

125. Accordingly, defendants violated Plaintiff's rights, pursuant to the First, Fourth and Fourteenth Amendments to the Constitution of the United States.

126. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

NINETEENTH CAUSE OF ACTION

Violation of Victims of Violent Crime Protection Act under
New York City Law

127. The above paragraphs are here incorporated by reference as though fully set forth herein.

128. Defendants' acts or series of acts constituted a misdemeanor or felony against plaintiff, as defined in state or federal law which presented a serious risk of physical injury to plaintiff, whether or not such acts have actually resulted in criminal charges, prosecution or conviction.

129. Accordingly, defendants committed a crime of violence against plaintiff and violated plaintiff's rights, pursuant to the Admin. Code of the City of New York § 10-403.

130. Defendant Best Buy, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

131. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

TWENTIETH CAUSE OF ACTION

Failure to Intervene Under
New York State Law

132. The above paragraphs are here incorporated by reference as though fully set forth herein.

133. Those Defendants that were present but did not actively participate in the aforementioned unlawful conduct, observed such conduct, had an opportunity to prevent such conduct, had a duty to intervene and prevent such conduct, and failed to intervene.

134. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

135. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

TWENTY-FIRST CAUSE OF ACTION

Failure to Intervene Under
42 U.S.C. § 1983 Against Individual Defendants

136. The above paragraphs are here incorporated by reference as though fully set forth herein.

137. Those Defendants that were present but did not actively participate in the aforementioned unlawful conduct observed such conduct, had an opportunity to prevent such conduct, had a duty to intervene and prevent such conduct, and failed to intervene.

138. Accordingly, the Defendants who failed to intervene violated the Fourth, Fifth, Sixth and Fourteenth Amendments.

139. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

TWENTY-SECOND CAUSE OF ACTION

Negligent Hiring, Training, Retention & Supervision Under
New York State Law

140. The above paragraphs are here incorporated by reference as though fully set forth.

141. Defendant City owed a duty of care to Plaintiff to adequately hire, train, retain and supervise its employee defendants.

142. Defendant City breached those duties of care.

143. Defendant City placed defendants in a position where they could inflict foreseeable harm.

144. Defendant City knew or should have known of its employee defendants' propensity for violating the individual rights granted under the United States Constitution and the laws of the State of New York, prior to the injuries incurred by Plaintiff.

145. Defendant City failed to take reasonable measures in hiring, training, retaining and supervising its employee defendants that would have prevented the aforesaid injuries to Plaintiff.

146. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

TWENTY-THIRD CAUSE OF ACTION

Municipal “*Monell*” Liability Under
42 U.S.C. § 1983 Against Defendant City

147. The above paragraphs are here incorporated by reference as though fully set forth.

148. Defendant City maintained a policy or custom that caused Plaintiff to be deprived of his civil rights, tacitly approved of such violative conduct or was deliberately indifferent toward the potential exposure of individuals, such as plaintiff, to such violative behavior.

149. Defendant City’s employee police officers have engaged in an illegal pattern and practice of misconduct, so consistent and widespread that it constitutes a custom or usage, of which a supervisor or policymaker must have been aware of.

150. Defendant City and its policymakers failed to provide adequate training or supervision to their subordinates to such an extent that is tantamount to a deliberate indifference toward the rights of those who may come into contact with defendant City’s employees.

151. Defendant City’s employees engaged in such egregious and flagrant violations of plaintiff’s Constitutional rights that the need for enhanced training or supervision is obvious and equates to a display of deliberate indifference by defendant City and its policymakers toward the rights of individuals, who may come into contact with defendant City’s employees.

152. Defendant City’s repeated refusal or failure to install or apply corrective or preventive measures constitutes the tacit approval of such violative behavior or a deliberate indifference to the rights of those who may be affected by such behavior.

153. Defendant City’s conduct caused the violation of plaintiff’s civil rights, pursuant to Constitution of the United States.

154. As a direct and proximate result of this unlawful conduct, plaintiff sustained the damages hereinbefore alleged.

WHEREFORE, Plaintiff respectfully requests judgment against Defendants, jointly and severally, as follows:

- a) On the First Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- b) On the Second Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- c) On the Third Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- d) On the Fourth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- e) On the Fifth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- f) On the Sixth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- g) On the Seventh Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;

- h) On the Eighth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- i) On the Ninth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- j) On the Tenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- k) On the Eleventh Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- l) On the Twelfth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- m) On the Thirteenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- n) On the Fourteenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;

- o) On the Fourteenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- p) On the Fifteenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- q) On the Sixteenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- r) On the Seventeenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- s) On the Eighteenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- t) On the Nineteenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- u) On the Twentieth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;

- v) On the Twenty-First Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
 - w) On the Twenty-Second Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
 - x) On the Twenty-Third Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
 - y) Awarding Plaintiff punitive damages in an amount to be determined by a jury on all causes of action set forth herein;
 - z) Awarding Plaintiff reasonable attorneys' fees and costs pursuant to 42 U.S.C. § 1988;
- Together with the costs and disbursements of this action.

JURY DEMAND

Plaintiff demands a trial by jury.

Dated: Bayside, New York
December 7, 2020

Respectfully submitted,

SIM & DEPAOLA, LLP



By: Samuel C. DePaola, Esq.
Attorneys for Plaintiff
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ATTORNEY VERIFICATION

I, Peter Sim, an attorney admitted to practice in the courts of New York State, state that I am a partner with the firm of **SIM & DEPAOLA, LLP**, the attorneys of record for Plaintiff in the within action; I have read the foregoing and know the contents thereof; the same is true to my own knowledge, except as to the matters therein stated to be alleged on information and belief, and as to those matters I believe it to be true. The reason this verification is made by me and not by Plaintiff, is because Plaintiff reside outside the county where deponent maintains his office. I affirm that the foregoing statements are true, under the penalties of perjury.

Dated: Bayside, New York
December 7, 2020



SAMUEL C. DEPAOLA, ESQ.

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

Index No.:

MALIQUE MENDOZA,

Plaintiff,

-against-

CITY OF NEW YORK, JESSICA SCHRELL AND JOHN OR JANE DOE 1-10,

Defendants.

SUMMONS & VERIFIED COMPLAINT

SIM & DEPAOLA, LLP

By: Samuel C. DePaola, Esq.

Attorney for Plaintiff

42-40 Bell Boulevard

Suite 201

Bayside, New York 11361

Tel. (718) 281-0400

TO: CORPORATION COUNSEL OF THE CITY OF NEW YORK

Attorney(s) for Defendants

Service of a copy of the within is hereby admitted.

Dated

Attorney(s) for